



Plant Protection Association of India

Plant Protection Association of India Golden Jubilee Celebrations 1972 - 2022

PJTAU Campus, Rajendranagar, Hyderabad 500030, Telangana, India

Comments on the draft Pesticides Management Bill, 2025 ---Submitted on February 3, 2026---

Part A: Details of person or organization

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Organization/Agency:	Plant Protection Association of India (PPAI, The Publisher of Indian Journal of Plant Protection)

Part-B: Comments / Suggestions (General)

S.No	Section / Clause	Issue	Comments / Suggestions
I	CHAPTER I: PRELIMINARY		
1	Section 3 () - Definition of "Biopesticide"	Incomplete biological scope. No Biopesticide in the definitions	Comment: The current draft often conflates biopesticides with botanical extracts only. Suggestion: Include 'Biopesticides' and expand the definition to include "Semiochemicals" (pheromones), "Microbials" (bacteria, fungi, viruses), and "Macro-biologicals" (predatory insects). This ensures a legal pathway for regulating nature-based solutions differently from synthetics.
2	Section 3 - Definition of "Pesticide"	Inclusion of 'Plant Growth Regulators' (PGRs).	Comment: If PGRs are lumped with pesticides without clear sub-categorization, organic-compliant PGRs might face unnecessary chemical-grade toxicity testing. Suggestion: Create a schedule to distinguish between "Synthetic Pesticides" and "Bio-stimulants/PGRs" to prevent regulatory overreach.
3	Section 3 - "Spurious Pesticide"	Ambiguity regarding unintentional degradation.	Comment: A product may fail quality tests due to poor storage conditions (heat/humidity) rather than fraudulent intent. Suggestion: Include and distinguish clearly between "Spurious" (deliberate fraud/unauthorized manufacturing) and "Sub-standard" (degradation over time). Penalties for dealers should be reformative for sub-standard batches and punitive for spurious ones.
II	CHAPTER II: THE CENTRAL PESTICIDES BOARD		
4	Section 5 (3) - Composition of	Lack of technical/expert diversity.	Comment: The Board is dominated by administrative ex-officio members.



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	Board		Suggestion: Mandate the inclusion of at least one "Toxicologist," one "Environmental Scientist," and two "Progressive Farmers/FPO Representatives" as permanent members to ensure scientific and ground-level balance.
5	Section 8 - Functions of the Board	Advisory role vs. Mandatory role.	Comment: The Board's advice on "safety to human beings and animals" is broad. Suggestion: Empower the Board to commission independent "Socio-Economic Impact Assessments" before banning a molecule that has no viable alternative for specific crops like Cotton or Rice.
III	CHAPTER III: REGISTRATION COMMITTEE		
6	Section 12 (1) - Registration of Pesticides	Absence of "Time-Bound" approvals.	Comment: Indefinite delays in registration stifle innovation. Suggestion: Insert a clause for "Statutory Timelines." If the RC does not provide observations within 120 days and a final decision within 180 days, the application should be escalated to an Ombudsman.
7	Section 13 - Criteria for Registration	Data Protection/Exclusivity.	Comment: The draft is silent on "Regulatory Data Protection" for new molecules. Suggestion: To encourage R&D, provide a 5-year data protection period for "New Chemical Entities (NCEs)" during which follow-on registrants cannot rely on the original innovator's data without consent.
8	Section 18 - Cancellation of Registration	Lack of "Show Cause" transparency.	Comment: Summary cancellation based on "public interest" can be arbitrary. Suggestion: Any cancellation proposal must be preceded by a public hearing or a technical review committee report where the registrant is allowed to present counter-evidence.
IV	CHAPTER IV: LICENSING		
9	Section 22 - Licensing of Dealers	Professionalization of Input Dealers.	Comment: Untrained dealers often provide wrong "prescriptions" to farmers. Suggestion: Mandate that every retail outlet must have at least one person with a "6-month Certificate Course in Plant Protection" or an Agriculture degree. This aligns with the "Doctor-Pharmacist" model.
10	Section 25 - Pesticide Advertisements	Generic vs. Brand-specific ads.	Comment: Misleading advertisements can lead to overuse. Suggestion: All advertisements must prominently display the "Waiting Period" (Pre-Harvest Interval) and be pre-cleared by a state-level technical committee to prevent exaggerated claims.
V	CHAPTER V: REGULATION OF IMPORT/EXPORT		



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11	Section 28 - Import of Pesticides	"Registration Committee" oversight on exports.	Comment: Stringent domestic norms shouldn't hinder "Export-Only" manufacturing. Suggestion: Create a "Green Channel" for pesticides manufactured exclusively for export, provided they meet the importing country's standards, to promote 'Make in India.'
VI	CHAPTER VI: ANALYSIS & TESTING		
12	Section 33 - Pesticide Analysts	Infrastructure of State Labs.	Comment: Many state labs lack LC-MS/MS equipment required for modern pesticide analysis. Suggestion: Section 33 should mandate "NABL Accreditation" for all State Pesticide Testing Laboratories (SPTLs) within 3 years of the Act's commencement.
VII	CHAPTER VII: OFFENCES & PENALTIES		
13	Section 45 - Compounding of Offences	High fines on small retailers.	Comment: Treating a small village retailer and a Multi-National Corporation with the same fine structure is inequitable. Suggestion: Introduce a "Graduated Penalty Scale" based on the annual turnover of the entity or the volume of the batch seized.
14	New Clause (Proposed)	Farmer Liability.	Comment: Farmers are often victims of bad advice. Suggestion: Explicitly state that "Farmers shall be exempt from prosecution" for usage-related violations unless it is proven they knowingly used a "Banned" substance.

Part-B: Comments / Suggestions (Balanced Stakeholder Perspective)

S.No	Section / Clause	Issue	Comments / Suggestions
I	CHAPTER I: PRELIMINARY		
1	Section 3(r) - "Ordinary Use Pesticide"	Safety risks in domestic/household settings.	Comment: There is no "safe" pesticide; labeling a product as "ordinary use" for homes/offices might bypass rigorous toxicity screening, endangering children and pets. All domestic products must undergo full safety evaluation. Suggestion (Industry & Consumer Safety View): Industry stakeholders and household safety advocates both suggest deleting this category.
II	CHAPTER II & III: COMMITTEES		
2	Section 9 (2) - Composition of Registration Committee	Lack of specialized expertise in Chemistry and Microbiology.	Comment: Without the expertise, registration of high-quality, high-efficacy products is delayed. Farmers benefit from products that are chemically stable and biologically active. Suggestion (Industry & Farmer View): Support the inclusion of a "Chemistry Expert" (for



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			technical purity) and "Microbiology Experts" (for biologicals).
3	Section 13 - Committee Meetings	Monthly track for Biologicals and Online Discussions.	Comment: Biologicals are "living systems" and seasonal; delays in approval mean farmers miss the pest cycle. Faster, documented digital reviews benefit "Time to Market" for safer alternatives. Suggestion (Farmer & Industry Interest): Support Coromandel's suggestion for monthly reviews and online technical discussions.
4	Section 14 - Role of Committee	Chemical-centric mindset for Biologicals.	Comment: Reducing chemical eventually result in addressing residues in food crops. Suggestion (Scientific View): Biologicals should be evaluated using "risk-based thinking" rather than the rigid chemical toxicity models. Suggestion (Farmer Interest): This allows for faster approval of low-toxicity bio-pesticides, reducing the chemical residue load on food crops consumed by households.
5	Section 14(iv) - Review of Registration	Conflict between Government Ban and RC Review.	Comment (Public Interest View): If the Central/State Govt. prohibits a pesticide based on scientific evidence of harm to public health, the RC should not have the power to "review" or override that ban. Suggestion: The Government's decision on safety must be final to protect consumers.
III	CHAPTER III: REGISTRATION		
6	Section 17(8) - Deemed Registrations	Risk of poor quality "Me Too" products.	Comment: While generic competition lowers prices for farmers, "deemed" approval (without verification) allows fly-by-night operators to sell sub-standard products. Every generic must prove it matches the safety/purity profile of the original to ensure farmer crop safety and consumer food safety. Suggestion (Farmer & Consumer Safety) View: Strongly OPPOSE "Deemed Registrations" for generic pesticides. Therefore, Deemed Registrations must be disallowed.
7	Section 20 - Provisional Registration	Performance-linked registration.	Comment: This allows farmers to test new tech on a smaller scale while data is collected from actual field conditions, rather than just lab data. Suggestion (Farmer Interest): Support "Limited/Provisional" registration for 2 years with "Performance Claims" refinement post-launch.
IV	CHAPTER VI: ANALYSIS & TESTING		
8	Section 27 / 28 - Testing Laboratories	Wrong testing methods for Biologicals.	Comment: Testing a biological product using chemical lab protocols leads to "False Failures," depriving farmers of a viable product and causing unnecessary legal losses for

			manufacturers. Suggestion (Industry & Scientific View): Biologicals must only be tested in labs accredited for "Microbial Analysis."
V	CHAPTER VII: ENFORCEMENT		
9	Section 30 / 31 - Inspection & Sampling	Chemical mindset in enforcement.	Comment: If an inspector treats a bio-fungicide like a chemical powder, the "live" efficacy is lost, leading to unfair prosecution of the dealer/company. Suggestion (Balanced View): Inspectors should follow "Biological-specific" sampling procedures (temperature control, sterile handling).
10	Section 33 / 34 - Surveillance	Post-Registration Surveillance vs. Instant Bans.	Comment: Early detection of resistance or side effects protects the farmer's investment and the consumer's health more effectively than a sudden ban after a disaster. Suggestion (Consumer & Farmer View): Move towards "Track Field Performance" rather than just waiting for complaints.

Part-B: Comments / Suggestions (Comprehensive Farmer-Centric View)

S.No	Section / Clause	Issue: The "Ground Reality" for Farmers	Suggestions for the Farmer's Benefit
1	Section 3(r) - Ordinary Use Pesticides	Safety Hazard: Household "ordinary" pesticides might be used on kitchen gardens or crops by mistake. If safety standards are lowered for these, farmers and their families risk exposure to toxic fumes or skin irritation without proper warnings.	Suggestion: Delete this category. Every pesticide, whether for home or farm, must meet high safety standards. A farmer's health at home is as important as their health in the field.
2	Section 9(2) - Registration Committee (RC) Composition	Lack of Field Reality: Decisions are often made by bureaucrats who don't understand how a pesticide behaves in 45°C heat or high humidity. If the chemistry is wrong, the product won't work in the field.	Suggestion: Include a Scientific Chemist and a Field Agronomist in the RC. This ensures products are tested for "shelf-life" in rural storage conditions, so farmers don't buy "expired" or degraded chemicals.
3	Section 13 - Review Timelines	The Window of Opportunity: Farmers have a narrow window (15-20 days) to spray for pests like Pink Bollworm or Fall Armyworm. If a new, better medicine is stuck in a "waiting list" for 6 months, the farmer loses the season.	Suggestion: Mandate Monthly Technical Reviews and a "Fast-Track" lane for Biologicals. Farmers need the latest technology <i>before</i> the pest attacks, not after the harvest is gone.
4	Section 14(iv) - Review of Prohibitions	Confusion & Vested Interests: If the Government bans a dangerous chemical for safety, allowing a committee to "review" and possibly bring it back creates confusion. Farmers need clear, stable advice on what is safe to use.	Suggestion: The Central/State Government's decision to ban a hazardous chemical should be final. Protecting farmer health and environment should override any "review" requested by manufacturers.



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5	Section 17(8) - Deemed Registration	Spurious Product Risk (CRITICAL): "Deemed" (automatic) registration is the biggest threat to farmers. It allows "fly-by-night" companies to flood the village shop with unverified generic chemicals. When these fail, the farmer loses their crop, their investment, and ends up in debt.	Suggestion: Strongly Oppose Deemed Registration. Every bottle must be verified for quality before it reaches the village. We need fewer, higher-quality "Me-Too" products, not thousands of cheap, failing ones.
6	Section 20 - Provisional Registration	The "Lab vs. Land" Gap: Lab data doesn't tell a farmer how much water to mix in different soil types. Farmers often follow "label claims" that don't work in their specific region.	Suggestion: Issue 2-year Provisional Registrations that allow companies to learn from actual farmer fields. This leads to better "Label Instructions" that are specific to Indian farming conditions.
7	Section 27 & 28 - Testing Labs	Wrong "Failures": If a good Bio-pesticide is tested in a lab meant for harsh chemicals, it might be wrongly declared "sub-standard." The local shop then stops selling it, and the farmer is forced back to expensive, toxic chemicals.	Suggestion: Bio-products must only be tested in Accredited Microbial Labs . This ensures farmers have a steady supply of genuine, effective "Green" pesticides.
8	Section 33 & 34 - Surveillance	Victim Blaming: Currently, action is only taken after a farmer's crop is destroyed or they get sick. This "complaint-based" system is too slow for a poor farmer.	Suggestion: Start Proactive Field Surveillance. The government should test samples from shops <i>before</i> the farmer buys them. Catch the poison before it reaches the sprayer.
9	New Provision - Traceability	Fake Invoices & "Kachha" Bills: Farmers are often sold pesticides without a proper bill, making it impossible to claim compensation if the crop fails.	Suggestion: Mandate QR Code Traceability on every bottle. A farmer should be able to scan the bottle with a mobile phone to see if it is genuine and when it was made.

Analysis of Conflicting Views: Pesticide Management Bill 2025

This report identifies the core tension points between the Industry (Manufacturers), Farmers (End-users), and Scientists (Regulatory/Safety observers).

1. The "Deemed Registration" Paradox (Section 17(8))

This is the most significant conflict in the entire Bill.

Stakeholder	Position	The Conflict
Industry (Generic)	FOR: Wants "Deemed Registration" to avoid bureaucratic delays and enter the market quickly with generic versions of off-patent chemicals.	Conflict of Quality vs. Speed: Industry wants immediate market access. Farmers and Scientists fear this will flood the market with "spurious" or sub-standard chemicals that have not been verified by the Registration Committee.
Farmers	STRONGLY AGAINST: Fear "Fly-by-night" operators selling ineffective chemicals. If a product is "deemed" registered without a lab check, the farmer bears the 100% risk of crop failure.	
Scientists	AGAINST: Argue that "Deemed" status bypasses safety and impurity profile checks, which are essential to prevent environmental toxicity.	

2. Time-to-Market vs. Precautionary Safety (Section 13 & 20)

The debate over "Provisional Registration" and "Fast-tracking."

Stakeholder	Position	The Conflict
Industry (R&D)	FOR (Fast-track): Argues that biologicals are "living systems" and shouldn't wait years for chemical-style approvals. They want "Provisional Registration" (Section 20) to refine products <i>after</i> launch.	Conflict of Innovation vs. Validation: Industry wants to use the field as a lab to speed up ROI. Farmers want new tech but are wary of being "guinea pigs." Scientists demand multi-season data <i>before</i> any launch.
Farmers	CAUTIOUS: They want the latest tech (like Biologicals) quickly, but they oppose the "Provisional" tag if it means the product might be unstable or ineffective in their specific soil.	
Scientists	SKEPTICAL: Insist that "Provisional" status often becomes permanent due to weak enforcement, potentially leading to the use of unproven microbial strains.	

3. Regulatory Control: Central Government vs. RC Autonomy (Section 14(iv))

Who has the final word on banning or reviewing a pesticide?

Stakeholder	Position	The Conflict
Industry	FOR (RC Review): Wants the Registration Committee (RC) to have the power to "review" bans. This gives them a legal window to challenge a ban and keep selling the product during the review.	Conflict of Economic Interest vs. Public Safety: Industry seeks a technical "second opinion" to protect investments. Farmers and Scientists view this as a loophole for "vested interests" to override government safety mandates.
Farmers /	AGAINST: Believe that if the	



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PPAI	Government bans a chemical for safety reasons, it should stay banned. They fear a "review" is just a way for companies to lobby for dangerous chemicals to return.	
Scientists	AGAINST: Maintain that scientific evidence for a ban (toxicity to bees, soil, or humans) should not be "negotiable" through a committee review process.	

4. Definition of "Ordinary Use" (Section 3(r))

The "Kitchen Garden" vs. "Commercial Farm" loophole.

Stakeholder	Position	The Conflict
Industry (Retail)	FOR: Wants a lighter regulatory category for "Ordinary Use" (household/garden) to reduce the cost of compliance and labelling for small-pack consumer goods.	Conflict of Market Segmentation vs. Hazard Management: Industry sees a different market; Farmers/Scientists see a "Backdoor Entry" where toxic chemicals could be sold under a "safer" label and misused on crops.
Farmers	AGAINST: Worry that if "Ordinary Use" pesticides have lower safety standards, they might be mistakenly used on food crops or accidentally expose children/livestock in the farmhouse.	
Scientists	AGAINST: Safety is absolute. A molecule's toxicity doesn't change because it's used in a garden instead of a farm. They argue for a single high standard.	

Summary Table for Third-Party Mediation

Issue	Industry's Goal	Farmer's Goal	Scientist's Concern
Deemed Registration	Ease of Doing Business	Ease of Living (Quality)	Public Health & Impurities
Provisional Reg.	Rapid Innovation	Crop Protection	Ecological Stability
Review of Bans	Financial Protection	Safety Assurance	Scientific Integrity
Ordinary Use	Market Expansion	Protection from Misuse	Toxicological Rigor

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